

Sole Source Justification (SSJ)
Simplified Procedures for Certain Commercial items for procurements exceeding the Simplified
Acquisition Threshold (SAT) pursuant to FAR Subpart 13.5, including Brand Name

SSJ Number: [REDACTED]

PR Number: [REDACTED]

Sole Source Justification

- 1. Agency and Contracting Activity.** U.S. Secret Service (USSS), Office of Procurement, proposes to enter into a sole source contract using simplified acquisition procedures.
- 2. Nature and/or description of the action being approved.** The Special Services Division (SSD) Truck Screening Program intends to renew a sole source, firm-fixed price service agreement with Rapiscan Systems. This award will be a follow-on contract to [REDACTED]. The previous contract was a sole source award valued at [REDACTED] with a Period of Performance from 01/21/2020-01/20/2025. The contract will assist Truck Screening facility to continue to screen and maintain a not to fail mission. A sole source letter is documented in the file.
- 3. Description of Supplies/Services.** The service agreement will include coverage for the following systems/components: Z-Portal, UVIS, ISOL Transformer, TSA-VM250 RAD Portal, LPR, Vehicle Pusher, Operator Booth, and Main and ECP Canopies. The estimated total value (including options) is [REDACTED].

The United States Secret Service utilizes a Rapiscan Systems backscatter portal x-ray system and its components at the Truck Screening facility on Joint Base Anacostia-Bolling. This system and its components are utilized to screening solicited cargo destined for the White House Complex to include the Department of Treasury. This equipment requires extended service with timely repair as required, to maintain mission capability. Z portal is a continuous need at the truck screening facility.

Creating a service agreement provides a base plus three-year option for the Z-portal backscatter x-ray system and all its components. This agreement will provide an effective solution to maintain and assure the x-ray equipment and its components are operational for daily use when required and the workmanship of the manufacturer meets/exceeds USSS Truck Screening standards.

4. Identification of the authority.

☒ 41 U.S.C. 1901, using SAP up to \$7.5M as authorized by FAR 13.500(a) and implemented by FAR 13.501(a).

Only one source and Brand Name: The Z-Portal X-ray machine and its components were bought through Rapiscan Systems. This equipment is exclusively manufactured by Rapiscan Systems with Rapiscan Systems parts. The parts to service these machines and its components are only available through Rapiscan Systems and only a certified Rapiscan Systems trained technician can properly service the machines to ensure the warranty remains intact.

Rapiscan Systems designed and installed the components that are on site. This equipment

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Simplified Procedures for Certain Commercial items for procurements exceeding the Simplified Acquisition Threshold (SAT) pursuant to FAR Subpart 13.5, including Brand Name has a life cycle of 30+ years with proper maintenance. Having an outside contractor conduct work would void any warranty provided by Rapiscan, subsequently no further coverage would be provided by them.

5. Description of efforts made to ensure that offers are solicited from as many potential sources as is practicable, including whether a notice was or will be publicized as required by FAR Subpart 5.2 and, if not, which exception under FAR 5.202 applies.

A sole source solicitation will be sent to Rapiscan to obtain an official quote and a Special Notice will be published on SAM to industry with vendor information referencing Rapiscan. Acquisition Planning Forecast System (APFS) was published to industry with no inquiries.

6. Determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.

The USSS purchased this equipment for over \$4 million dollars in 2019. Renewing this agreement will save the USSS time and money since preventative maintenance will keep the equipment in operational order and prolong the life of the unit. A combination of historical data and current market research confirms fair and reasonableness.

7. Description of market research.

Rapiscan Systems provided a sole-source letter stating that their products and parts, to include servicing, is proprietary to the manufacturer (RAPISCAN SYSTEMS). Market research was conducted on the availability of servicing this current equipment was completed via internet search, to include GSA Advantage and discussions with industry. We have confirmed the service agreements are proprietary to this manufacturer.

8. Any other facts supporting the justification.

Rapiscan is the only company to have developed, patented and commercialized X-ray Backscatter imaging systems suitable for inspection of a wide variety of objects. The systems developed by Rapiscan all employ Rapiscan's unique "Flying Spot Pencil Beam" to generate the interrogating X-ray beam. The Compton Scatter generated from this process is subsequently collected by proprietary large area detectors and processed into displayable imagery using unique Rapiscan-developed data formats and software. Overall, Rapiscan has over 30 patents issued and pending which protect its intellectual property in the area of X-ray based imaging systems. These patents extend to include not only Backscatter but Transmission imaging systems as well. Rapiscan X-ray Inspection Systems are proprietary due to their patented Rapiscan technologies. Detailed schematics and proprietary system information is only provided to Rapiscan service personnel.

To ensure proper performance, imaging, operational availability and that all component warranties remain valid, it is critical that specifically selected parts are used to repair and maintain these systems. The items which are proprietary only to Rapiscan include: Source Assembly Hoop Assembly, Transmission and Backscatter Detectors, X-ray Tube, Cables and proper connections, Display Circuit Boards, Detector Electronics, Vehicle Transport, Safety

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9. A listing of the sources, if any that expressed, in writing, an interest in the acquisition.

None

10. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for supplies or services required.

SSD will continue monitoring other industry providers to identify equipment that is both mission compliant and price competitive.

11. USSS intends to post the requirement pursuant to FAR 13.501(a)(1)(iii) and 6.305(a).

12. Technical/Requirements Personnel Certification.

I certify this requirement meets the Government's minimum need and that the supporting data, which forms a basis for this justification, is complete and accurate.

[Redacted Signature]

Technical Representative/COR

[Redacted Signature]

Date

13. Contracting Officer Certification. I certify that the data supporting the recommended use of other than full and open competition is accurate and complete to the best of my knowledge and belief.

[Redacted Signature]

Contracting Officer

Date

APPROVAL:

[Redacted Signature]

Procuring Activity Advocate for Competition

Date